Kamal S/O Shiv Ram vs Mursleem S/O Mohd. Akil on 4 January, 2019

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court)
Karkardooma Courts, Delhi.

In the Court of Sh. G. N Pandey
Motor Accident Claims Tribunal(Pilot Court)
Karkardooma Courts, Delhi.

DAR Nos. 402/18, 403/18 & 404/18

DAR No. 402/18

IN THE MATTER OF :-

Kamal S/o Shiv Ram
R/o 4 ½ Pusta, Shivaji Mohalla,
Sonia Vihar, Delhi. ..... Petitioner

VERSUS

1. Mursleem S/o Mohd. Akil
R/o H. No. 78, Village Mursadpur,
Hansipur, Distt. Hapur, UP

2. Ashif S/o Mohd. Abdulla Khan
R/o L-68, L Block, Welcome Seelampur, Delhi.

3. Bajaj Allianz General Insurance Co. Ltd. .... Respondent

Date of Institution of petition : 05.11.2018 Date of Judgment/Order : 04.01.2019 IN THE MATTER OF :□Rajni D/o Shiv Ram R/o 4 ½ Pusta, Sonia Vihar, Delhi. ..... Petitioner VERSUS

1. Mursleem S/o Mohd. Akil R/o H. No. 78, Village Mursadpur, Hansipur, Distt. Hapur, UP

2. Ashif S/o Mohd. Abdulla Khan R/o L□68, L Block, Welcome Seelampur, Delhi.

DAR Nos. 402/18, 403/18 & 404/18 1 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

3. Bajaj Allianz General Insurance Co. Ltd. .... Respondents Date of Institution of petition : 05.11.2018 Date of Judgment/Order : 04.01.2019 IN THE MATTER OF :□Tannu D/o Ramesh Kumar R/o 4 ½ Pusta, Gali No. 6, Sonia Vihar, Delhi. ..... Petitioner VERSUS

1. Mursleem S/o Mohd. Akil R/o H. No. 78, Village Mursadpur, Hansipur, Distt. Hapur, UP

2. Ashif S/o Mohd. Abdulla Khan R/o L□68, L Block, Welcome Seelampur, Delhi.

3. Bajaj Allianz General Insurance Co. Ltd. ..... Respondents Date of Institution of petition : 05.11.2018 Date of Judgment/Order : 04.01.2019 A W A R D:☐

1. By this common award, three DAR petitions for grant of compensation U/s 166 and 140 of the MV Act, 1988 is disposed off.

2. Briefly the facts of all three cases are that on 31.08.2018, injured persons were going through motorcycle and when they reached near 4 th pushta, Sonia Vihar, Delhi, in the meanwhile, offending vehicle bearing No. DL 1 LX 2320 which was being driven by its driver at a very high speed, rashly and negligently came and hit the motorcycle of the injured. Due to which, they fell down on the road and sustained serious and grievous injuries; they were immediately taken to Sushruta Trauma Centre and got admitted. Injured Kamal was remained admitted in the DAR Nos. 402/18, 403/18 & 404/18 2 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

hospital till 18.09.2018 i.e. 19 days and right leg and right hand of the injured was got operated. Injured Rajni was remained admitted in the hospital till 01.09.2018 and kacha plaster was made on her right foot for the period of more than one month. Injured Tannu was remained admitted in the hospital till 06.09.2018 and kacha plaster was made on her right leg after got operated for the period of more than one month. FIR No. 188/18 was registered at PS Sonia Vihar regarding the accident and thereafter the petitions for comp ensation under MV Act, 1988. The respondents in all the petitions are common.

3. The respondent No. 1 and 2 jointly filed their WS denying the averments made in the petition contending that this petition is not maintainable and there is no cause of action for filing of the same. As contended, respondent No. 1 is competent and driving the vehicle with all the precaution and accident was caused due to negligence of the petitioner; petitioner with collusion of police falsely implicated the vehicle of respondent No. 2. It is further contended that vehicle of the respondent No. 2 is fully insured with the insurance company. While denying rest of the claim of the petitioner in the petition, the respondent No. 1 and 2 prayed to dismiss the petition with cost.

Respondent No. 3 / Insurance Company filed WS of the claim petition contending that the alleged offending vehicle No. DL 1 LX 2320 was insured with the answering respondent vide policy No. OG 19 1101 1803 00003171 valid from 15.08.2018 to 14.08.2019 in the name of Mohd. Asif.

4. In view of the records, following issues were framed on 24.11.2018 in DAR Petition No. 402/18:☐

1. Whether deceased died on account of injuries sustained in accident took place on 31.08.2018 at about DAR Nos. 402/18, 403/18 & 404/18 3 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent No. 1 ?OPP

2. Whether petitioner is entitled to compensation? If so, to what amount and from whom? OPP

3. Relief.

5. Following issues were framed in petition No. 403/18 on 24.11.2018 :☐

1. Whether deceased died on account of injuries sustained in accident took place on 31.08.2018 at about 20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent No. 1 ?OPP

2. Whether petitioner is entitled to compensation? If so, to what amount and from whom? OPP

3. Relief.

6. Following issues were framed in petition No. 404/18 on 24.11.2018 :☐

1. Whether deceased died on account of injuries sustained in accident took place on 31.08.2018 at about 20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent No. 1 ?OPP

2. Whether petitioner is entitled to compensation? If so, to DAR Nos. 402/18, 403/18 & 404/18 4 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

what amount and from whom? OPP

3. Relief.

The evidence were recorded in the matter for disposal of the petitions.

Evidence in Petition No. 402/18☐

7. Injured examined himself as PW☐1 by way of affidavit of evidence Ex. PW 1/A. Witness has relied upon the documents i.e. Ex. PW 1/ 1 and Ex. PW 1/ 2. PE was thereafter closed.

8. Respondent No. 1 and 2 filed their evidence by way of their affidavits Ex. R1W1/A and Ex. R2W1/A and examined themselves as R1W1 and R2W1 who deposed nothing but as deposed in the WS.

Respondent No. 3 examined the witness i.e. Ms. Eileen Rose Tirkey, Sr. Executive as R3W1 by way of affidavit Ex. R3W1/A. Witness has relied upon the documents i.e. Ex. R3W1/1. RE was thereafter closed.

Evidence in Petition No. 403/18☐

9. Mother of Injured examined herself as PW☐1 by way of affidavit of evidence Ex. PW 1/A. Witness has relied upon the documents i.e. Ex. PW 1/ 1 and Ex. PW 1/ 2. PE was thereafter closed.

10. Respondent No. 1 and 2 filed their evidence by way of their affidavits Ex. R1W1/A and Ex. R2W1/A and examined themselves as R1W1 and R2W1 who deposed nothing but as deposed in the WS.

Respondent No. 3 examined the witness i.e. Ms. Eileen Rose Tirkey, Sr. Executive as R3W1 by way of affidavit Ex. R3W1/A. Witness has relied upon the documents i.e. Ex. R3W1/1. RE was thereafter closed.

Evidence in Petition No. 404/18☐

11. Mother of Injured examined herself as PW☐1 by way of affidavit of evidence Ex. PW 1/A. Witness has relied upon the documents i.e. Ex.

DAR Nos. 402/18, 403/18 & 404/18 5 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

PW 1/ 1 and Ex. PW 1/ 2. PE was thereafter closed.

12. Respondent No. 1 and 2 filed their evidence by way of their affidavits Ex. R1W1/A and Ex. R2W1/A and examined themselves as R1W1 and R2W1 who deposed nothing but as deposed in the WS.

Respondent No. 3 examined the witness i.e. Ms. Eileen Rose Tirkey, Sr. Executive as R3W1 by way of affidavit Ex. R3W1/A. Witness has relied upon the documents i.e. Ex. R3W1/1. RE was thereafter closed.

13. I have heard Ld. counsel for petitioner, ld. Counsel for respondent No. 1 and 2 and Ld. counsel for respondent No. 3 and gone through the records.

14. My findings on the aforesaid issues are as follows :☐Issue No. 1 in petition No. 402/18:☐

1. Whether deceased died on account of injuries sustained in accident took place on 31.08.2018 at about 20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent No. 1 ?OPP Issue No. 1 in petition No. 403/18:☐

1. Whether deceased died on account of injuries sustained in accident took place on 31.08.2018 at about 20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent

No. 1 ?OPP Issue No. 1 in petition No. 404/18:□

1. Whether deceased died on account of injuries DAR Nos. 402/18, 403/18 & 404/18 6 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

sustained in accident took place on 31.08.2018 at about 20.00 hrs at 4th Pushta, Sonia Vihar, Delhi of PS Sonia Vihar within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 1 LX 2320 by respondent No. 1 ?OPP

15. To succeed in the petition in view of Section 166 of the MV Act, it is for the claimant to prove that vehicle which caused the accident was being driven rashly and negligently by its driver. Issue No. 1 in all the cases is taken up together. Petitioners were examined as PW□1 and deposed about the facts of the case. They were cross□examined by ld. Counsel for respondents and during cross□ examination nothing has come forward in their testimony to disbelieve the version of PW. On the other hand, the testimony of RW did not rebut the testimony of PW to deny the claim of the petitioner and mere denial is not sufficient to rebut the claim of the petitioner. No witness was produced or examined by respondents as well to prove as to how accident occurred due to the negligence of the injured; the driver was not at fault and was not driving the vehicle in rash and negligent manner. There is no reason to disbelieve the testimony of witnesses. DAR filed by IO which includes copy of FIR, site plan and MLC etc. I have gone through the record and documents in respect of the accident caused to the petitioner which is prima facie suggestive of negligence of driver in driving the vehicle at the time of accident.

Relied judgment in (Bimla Devi and Ors. v. Himachal Road Transport Corporation and Ors., (2009) 13 SC 530 and the judgment in Parmeshwari v. Amir Chand (2011) 11 SCC 635 and Kusum Lata v. Satbir, (2011) 3 SCC 646).

Hon'ble Supreme Court in Bimla Devi and Ors. V/s Himachal Road Transport Corporation and Ors, (2009) 13 SC 530 held as under:

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> "15. In a situation of this nature, the Tribunal has rightly taken a holistic view of the matter. It was necessary to be borne in mind that strict proof of any accident caused by a particular bus in a particular manner may not be possible to be done by the claimant. The claimants were merely to establish their case on the touchstone of preponderance of probability. The standard of proof beyond reasonable doubt could not have been applied."

16. In judgment of Hon'ble Delhi High Court in United India Insurance Company Ltd. Vs. Deepak Goel & Ors., 2014 (2), T.A.C. 846 (Del.), it was held that in a case, where FIR is lodged, chargesheet is filed, then the documents mentioned above are sufficient to establish the fact that the driver of the vehicle in question was negligent in causing the accident particularly when there was no defence

available from his side. In case of Cholamandalam M.S. General Insurance Co. Ltd. v. Kamlesh, 2009 (3) AD (Delhi) 310, an adverse inference was drawn because the driver of the offending vehicle had not appeared in the witness box to corroborate his defence taken in the written statement. It was noted that there was nothing on record to show that the Claimant had any enmity with the driver of the offending vehicle so as to falsely implicate him in the case.

17. I have gone through the judgment of Hon'ble High Court of Delhi in 2009 ACJ 287, National Insurance Company Limited Vs. Pushpa Rana to examine the aspect of negligence wherein in the Hon'ble High Court held that:□In case the petitioner files the certified copy of the criminal record or the criminal record showing the completion of the investigation by the police or the issuance of charge sheet under section 279/304 A IPC or the certified copy of the FIR DAR Nos. 402/18, 403/18 & 404/18 8 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

or in addition the recovery memo and the mechanical inspection report of the offending vehicle, these documents are sufficient proof to reach to the conclusion that the driver was negligent. It was further held that the proceedings under the Motor Vehicles Act are not akin to the proceedings in a civil suit and hence strict rules of evidence are not required to be followed in this regard.

Further, in Kaushnumma Begum and others V/s New India Assurance Company Limited, 2001 ACJ 421 SC, the issue of wrongful act or omission on the part of driver of the motor vehicle involved in the accident has been left to a secondary importance and it was held that, mere use or involvement of motor vehicle in causing bodily injuries or death to a human being or damage to property would made the petition maintainable under section 166 and 140 of the Act. It is also settled law that the term rashness and negligence has to be construed lightly while making a decision on a petition for claim for the same as compared to the word rashness and negligence as finds mention in the Indian Penal Code. This is because the chapter in the Motor Vehicle Act dealing with compensation is a benevolent legislation and not a penal one.

Further the Hon'ble High Court of Delhi in MAC App. No.200/2012 in case titled as United India Insurance Co. Ltd. V/s. Smt. Rinki @ Rinku & Ors decided on 23/07/2012 by Hon'ble Delhi High Court, held as under:

> "The Claims Tribunal was conscious of the fact that negligence is a sine qua non to a Petition under Section 166 of the Motor Vehicles Act, 1988(the Act). It is also true that the proceedings for grant of compensation under the Act are neither governed by DAR Nos. 402/18, 403/18 & 404/18 9 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.
>
> the criminal procedures nor are a civil suit.

18. Therefore, in view of the criminal case record and statement of PWs, it is proved that injured Kamal, Rajni and Tannu sustained injuries on 31.08.2018 due to rash and negligent driving of offending vehicle bearing No. DL 1 LX 2320 driven by its driver i.e. respondent No. 1. The issue is

decided accordingly.

Issue No. ii in petition No. 402/18 :☐

(ii) Whether petitioner is entitled to compensation ? If so to what amount and from whom? OPP

19. Hon'ble Supreme Court in (2011) 1 SCC 343 titled Raj Kumar V/s Ajay Kumar & Anr. examined the general principles relating to compensation in injury cases. As held:☐

4. The provision of the Motor Vehicles Act, 1988 (Act for short) makes it clear that the award must be just, which means that compensation should , to the extent possible, fully and adequately restore the claimant to the position prior to the accident. The object of awarding damages is to make good the loss suffered as a result of wrong done as far as money can do so, in a fair, reasonable and equitable manner. The court of tribunal shall have to assess the damages objectively and exclude from consideration any speculation or fancy, though some conjecture with reference to the nature of disability and its consequences, is inevitable. A person is not only to be compensated for the physical injury, but also for the loss which he suffered as a result of such injury. This means that he is to be compensated for his inability to lead a full life, his inability to enjoy those normal amenities which he would DAR Nos. 402/18, 403/18 & 404/18 10 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

have enjoyed but for the injuries, and his inability to earn as much as he used to earn or could have earned. (See C. K. Subramonia Iyer V. T. Kunhikuttan Nair MANU/SC/0011/1969 : AIR 1970 SC 375, R.D. Hattangadi V. Pest Control (India) Ltd.

MANU/SC/0146/1995 : 1995 (1) SCC 551 and Baker V. Willoughby 1970 AC 467.

5. The heads under which compensation is awarded in personal injury cases are the following:☐ Pecuniary damages (Special Damages)

(i) Expenses relating to treatment, hospitalization, medicines, transportation, nourishing food, and miscellaneous expenditure.

(ii) Loss of earning (and other gains) which the injured would have made had he not been injured, comprising:

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                (a)         Loss of earning during the period of
treatment;
                (b)        Loss of future earnings on account of
permanent disability.
      (iii)    Future medical expenses.
      Non-pecuniary damages (General Damages)
      (iv)     Damages for pain, suffering and trauma as a
consequence of the injuries.
      (v)      Loss of amenities ( and/ or loss of prospects of
marriage).
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(vi) Loss of expectation of life (shortening of normal longevity).

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In routine personal injury cases, compensation will be awarded only under heads (I), (ii) (a) and (iv). It is only in serious cases of injury, where there is specific medical evidence corroborating the evidence of the claimant, that compensation will be granted under any of the heads (ii)

(b), (iii), (v) and (vi) relating to loss of future earning on account of permanent disability, future medical expenses, loss of amenities (and / or loss of prospects of marriage) and loss of expectation of life. Assessment of pecuniary damages under item (I) and under item (ii) (a) do not pose much difficulty as they involve reimbursement of actual and are easily ascertainable from the evidence. Award under the head of future medical expenses□item (iii)□□depends upon specific medical evidence regarding need for further treatment and cost thereof. Assessment of non pecuniary damages□items (iv), (v) and (vi) - involves determination of lump sum amounts with reference to circumstances such as age, nature of injury/deprivation/ disability suffered by the claimant and the effect thereof on the future life of the claimant.

Hon'ble Supreme Court further observed regarding assessment of future loss of earnings due to permanent disability that disability refers to any restriction for lack of liability to perform an activity in the manner considered normal for human being permanent disability refers to the residuary in capacity or loss of huge of some part of the body, found existing at the end of the period of treatment and recuperation, after receiving the maximum bodily DAR Nos. 402/18, 403/18 & 404/18 12 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

improvement or recovery which is likely to remain for the remainder life of the injured. The percentage of permanent disability is expressed which reference to the whole body, or more often then an not, with reference to a particularly limb. Where the claimant suffers a permanent disability as a result of injuries, the assessment of compensation under the head of loss of future earning would depend upon the effect and impact of such permanent disability on his earning capacity. What requires to be assessed by the tribunal is the effect of the permanent disability on his earnings capacity of the injured; and after assessing the loss of earnings capacity in terms of percentage of income, it has been pointify in terms of money, to arrive at the future loss of earning(by applying the standard multiplier method used to determine loss of dependency As further held, the trial has to first decide whether there is an permanent disability and if so the extent of such permanent disability. Ascertainment of the effect of the permanent disability on the actual earning capacity involves three steps. The Tribunal has to first ascertain what activities the claimant could carry on in spite of the permanent disability and what he could not do as a result of the permanent disability (this is also relevant for awarding compensation under the head of loss of amenities of life). The second step is to ascertain his avocation, profession and nature of work before the accident, as also his age. The third step is to find out whether (i) the claimant could still effectively carry on the activities and functions, which he was DAR Nos. 402/18, 403/18 & 404/18 13 of 34 Sh. G. N.

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earlier carrying on, or (iii) whether he was prevented or restricted from discharging his previous activities and functions, but could carry on some other or lesser scale of activities and functions so that he continues to earn or can continue to earn his livelihood.

Hon'ble Supreme court laid down the principles in respect of the assessment of compensation regarding injuries as below:

(i) All injuries (or permanent disabilities arising from injuries), do not result in loss of earning capacity.

(ii) The percentage of permanent disability with reference to the whole body of a person, cannot be assumed to be the percentage of loss of earning capacity. To put it differently, the percentage of loss of earning capacity is not the same as the percentage of permanent disability (except in a few cases, where the Tribunal on the basis of evidence, concludes that percentage of loss of earning capacity is the same as percentage of permanent disability).

(iii) The doctor who treated an injured claimant or who examined him subsequently to assess the extent of his permanent disability can give evidence only in regard the extent of permanent disability. The loss of earning capacity is something that will have to be assessed by the Tribunal with reference to the evidence in entirety.

(iv) The same permanent disability may result in different percentage of loss of earning capacity in different persons, depending upon the nature of profession, occupation or job, age, education and other factors.

20. I have gone through the testimony of the witnesses alongwith DAR Nos. 402/18, 403/18 & 404/18 14 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

complete medical records. It is deposed that due to the accident, all the injured fell down on the road and sustained serious and grievous injuries; they were immediately taken to Sushruta Trauma Centre and got admitted. Injured Kamal was remained admitted in the hospital till 18.09.2018 i.e. 19 days and right leg and right hand of the injured was got operated. FIR No. 188/18 was registered at PS Sooia Vihar regarding the accident. The petitioner claimed that he is working as a salesman at 759, Katra Neel, Chandni Chowk, Delhi and his monthly salary is Rs. 17,000/ per month. No document has been placed on record by the injured regarding his income. In the absence of the any record, petitioner is entitled to compensation as per minimum wages Act as applicable to unskilled workman while considering his monthly salary as per prevalent rate at relevant time i.e. 31.08.2018 when accident took place. The income of the injured is assessed as per the minimum wages on the date of accident i.e 31.08.2018 which was Rs. 13,896/ per month for unskilled workman.

21. I have gone through the medical records of the petitioner. There is nothing on record in support of the affidavit of PW□1 that he suffered any loss of earnings from his work. However, with the kind of injuries suffered by him, it can be safely assumed that he would have been under treatment for about three months. He is thus awarded Rs. 41,688/□(Rs. 13,896/□X 3) for three months for Loss of Wages.

22. The petitioner has claimed amount towards compensation from the respondent. It is also claimed that after the accident, the petitioner could not perform his routine and required attendant/ assistance for his day to day business; he also suffered financial losses due the accident and his family suffered mental pain and agony.

23. While fixing compensation for pain and sufferings, as also for loss of amenities of life, the features like the age and unusual deprivation DAR Nos. 402/18, 403/18 & 404/18 15 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

undertaken by a person in his life generally are to be reckoned. From the overall assessment, I assess Rs. 50,000/□as compensation towards Pain, Shock and Suffering to the Claimant as patient suffered multiple facial injuries.

24. Ld. Counsel for petitioner submits that petitioner has spent amount for his treatment but no medical bills has been filed on record. Petitioner is not awarded any amount towards medical bills.

25. The Claimant has not filed any document in support of the fact that he had incurred expenses on keeping an attendant, for conveyance and for extra nutritious diet. However, I guess he must have spent some amount for which he is awarded a lumpsum amount of Rs. 5,000/□for Special Diet and Rs. 5,000/□for Conveyance Charges.

26. Keeping in view the nature of injuries suffered by the petitioner and the fact that he was under constant treatment, he needed an Attendant to look after him and the petitioner is therefore, entitled to attendant charges. Petitioner has not filed any record to show that he has received help of special attendant however, some family member must have been attending him. A victim of accident has to be compensated in terms of money even if gratuitous services are under by a family members. In Delhi Transport Corporation and Anr. v. Lalita AIR 1981 Delhi 558, a Division Bench of Hon'ble High Court held that there cannot be any deduction if domestic help is obtained from a family member. This judgment was again relied upon by the Hon'ble High Court of Delhi in the case of Narayan Bahadur v. Sumeet Gupta and Anr., MAC APP. No. 762/11 dated 04.07.12. In the circumstances, where the injured had suffered injury, it is deemed fit that a lump sum of Rs. 10,000/□be awarded as compensation towards Attendant charges.

27. Keeping in view the facts and circumstances, I consider the DAR Nos. 402/18, 403/18 & 404/18 16 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

following amount to be the just compensation to the Claimant :□

1. Future Loss of Income Rs. 0/□

2. Towards Pain Shock & Suffering Rs. 50,000/□3 Towards Servant / Attendant Charges Rs. 10,000/□

4. Towards Conveyance & Special diet Rs. 10,000/□5 Towards medical bills Rs. 0/□6 Towards loss of Wages (three months) Rs. 41,688/□Total= Rs. 1,11,688/□Ld. counsel for insurance company vehemently argued that due to the contributory negligence of the injured, petitioner is not entitled for the compensation. The contributory negligence of injured is proved in view of testimony of PW□1 who categorically deposed during cross examination that the he is the one who was driving the motorcycle at the time of accident and other two injured persons namely Tannu and Rajni were pillion riders at the time of accident; he did not have DL at the time of accident and they all three were not wearing the helmets. Keeping in view of circumstances of the case, the 50 % of the total compensation amount is deducted towards contributory negligence. The petitioner is accordingly entitled for compensation of Rs. 55,844/□from the respondents.

I accordingly award an amount of compensation of Rs. 55,844/□in favour of the Claimant and against Respondents. Issue No. ii in petition No. 403/18 :□

(ii) Whether petitioner is entitled to compensation ? If so to what amount and from whom? OPP

28. Hon'ble Supreme Court in (2011) 1 SCC 343 titled Raj Kumar V/s Ajay Kumar & Anr. examined the general principles relating to compensation in injury cases. As held:□DAR Nos. 402/18, 403/18 & 404/18 17 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

4. The provision of the Motor Vehicles Act, 1988 (Act for short) makes it clear that the award must be just, which means that compensation should , to the extent possible, fully and adequately restore the claimant to the position prior to the accident. The object of awarding damages is to make good the loss suffered as a result of wrong done as far as money can do so, in a fair, reasonable and equitable manner. The court of tribunal shall have to assess the damages objectively and exclude from consideration any speculation or fancy, though some conjecture with reference to the nature of disability and its consequences, is inevitable. A person is not only to be compensated for the physical injury, but also for the loss which he suffered as a result of such injury. This means that he is to be compensated for his inability to lead a full life, his inability to enjoy those normal amenities which he would have enjoyed but for the injuries, and his inability to earn as much as he used to earn or could have earned. (See C. K. Subramonia Iyer V. T. Kunhikuttan Nair MANU/SC/0011/1969 : AIR 1970 SC 375, R.D. Hattangadi V. Pest Control (India) Ltd.

MANU/SC/0146/1995 : 1995 (1) SCC 551 and Baker V. Willoughby 1970 AC 467.

5. The heads under which compensation is awarded in personal injury cases are the following:□ Pecuniary damages (Special Damages)

(i) Expenses relating to treatment, hospitalization, medicines, transportation, nourishing DAR Nos. 402/18, 403/18 & 404/18 18 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

food, and miscellaneous expenditure.

(ii) Loss of earning (and other gains) which the injured would have made had he not been injured, comprising:

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                (a)       Loss of earning during the period of
treatment;
                (b)      Loss of future earnings on account of
permanent disability.
      (iii)    Future medical expenses.
      Non-pecuniary damages (General Damages)
      (iv)     Damages for pain, suffering and trauma as a
consequence of the injuries.
      (v)      Loss of amenities ( and/ or loss of prospects of
marriage).
      (vi)     Loss of expectation of life ( shortening of
normal longevity).
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In routine personal injury cases, compensation will be awarded only under heads (I), (ii) (a) and (iv). It is only in serious cases of injury, where there is specific medical evidence corroborating the evidence of the claimant, that compensation will be granted under any of the heads (ii)

(b), (iii), (v) and (vi) relating to loss of future earning on account of permanent disability, future medical expenses, loss of amenities (and / or loss of prospects of marriage) and loss of expectation of life. Assessment of pecuniary damages under item (I) and under item (ii) (a) do not pose much difficulty as they involve reimbursement of actual and are easily ascertainable from the evidence. Award under DAR Nos. 402/18, 403/18 & 404/18 19 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

the head of future medical expenses□item (iii)□□depends upon specific medical evidence regarding need for further treatment and cost thereof. Assessment of non pecuniary damages□items (iv), (v) and (vi) - involves determination of lump sum amounts with reference to circumstances such as age, nature of injury/deprivation/ disability suffered by the claimant and the effect thereof on the future life of the claimant.

Hon'ble Supreme Court further observed regarding assessment of future loss of earnings due to permanent disability that disability refers to any restriction for lack of liability to perform an activity in the manner considered normal for human being permanent disability refers to the residuary in capacity or loss of huge of some part of the body, found existing at the end of the period of treatment and recuperation, after receiving the maximum bodily improvement or recovery which is likely to remain for the remainder life of the injured. The percentage of permanent disability is expressed which reference to the whole body, or more often then an not, with reference to a particularly limb.

Where the claimant suffers a permanent disability as a result of injuries, the assessment of compensation under the head of loss of future earning would depend upon the effect and impact of such permanent disability on his earning capacity. What requires to be assessed by the tribunal is the effect of the permanent disability on his earnings capacity of the injured; and after assessing the loss of earnings capacity in terms of percentage of income, it has been pointify in terms of money, DAR Nos. 402/18, 403/18 & 404/18 20 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

to arrive at the future loss of earning(by applying the standard multiplier method used to determine loss of dependency As further held, the trial has to first decide whether there is an permanent disability and if so the extent of such permanent disability. Ascertainment of the effect of the permanent disability on the actual earning capacity involves three steps. The Tribunal has to first ascertain what activities the claimant could carry on in spite of the permanent disability and what he could not do as a result of the permanent disability (this is also relevant for awarding compensation under the head of loss of amenities of life). The second step is to ascertain his avocation, profession and nature of work before the accident, as also his age. The third step is to find out whether (i) the claimant could still effectively carry on the activities and functions, which he was earlier carrying on, or (iii) whether he was prevented or restricted from discharging his previous activities and functions, but could carry on some other or lesser scale of activities and functions so that he continues to earn or can continue to earn his livelihood.

Hon'ble Supreme court laid down the principles in respect of the assessment of compensation regarding injuries as below:

(i) All injuries (or permanent disabilities arising from injuries), do not result in loss of earning capacity.

(ii) The percentage of permanent disability with reference to the whole body of a person, cannot be assumed to be the percentage of loss of earning capacity. To put it differently, the DAR Nos. 402/18, 403/18 & 404/18 21 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

percentage of loss of earning capacity is not the same as the percentage of permanent disability (except in a few cases, where the Tribunal on the basis of evidence, concludes that percentage of loss of earning capacity is the same as percentage of permanent disability).

(iii) The doctor who treated an injured claimant or who examined him subsequently to assess the extent of his permanent disability can give evidence only in regard the extent of permanent disability. The loss of earning capacity is something that will have to be assessed by the Tribunal with reference to the evidence in entirety.

(iv) The same permanent disability may result in different percentage of loss of earning capacity in different persons, depending upon the nature of profession, occupation or job, age, education and other factors.

29. I have gone through the testimony of the witnesses alongwith complete medical records. Ld. Counsel for respondents argued that injured has not suffered any monetary loss on account of the injury and therefore, injured should not be granted any amount on account of loss of income.

30. Mother of injured has stated in her affidavit Ex. PW 1/A that injured was aged about 14 years at the time of accident and is studying in IXth class in Govt Girls Senior Sec. School. Mother of injured further deposed that she could not appeared in her exam due to the accident. Mother of injured further stated that due to the accident, injured fell down on the road and sustained grievous injuries ; Injured Rajni was remained admitted in the hospital till 01.09.2018 and kacha plaster was made on her right foot for the period of more than one month. FIR No. 188/18 was registered at PS Sooia Vihar regarding the accident.

DAR Nos. 402/18, 403/18 & 404/18 22 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

31. There is nothing on record in support of the affidavit of PW□1 that injured has suffered any loss of earnings as she was student. However, with the kind of injuries suffered by her, it can be safely assumed that she would have been under treatment leading to her loss of education. She is thus awarded Rs. 12,000/□towards loss of education.

32. While fixing compensation for pain and sufferings, as also for loss of amenities of life, the features like the age and unusual deprivation undertaken by a person in her life generally are to be reckoned. From the overall assessment, I assess Rs. 50,000/□as compensation towards Pain, Shock and Suffering to the Claimant.

33. Ld. Counsel for petitioner submits that parents of injured has spent amount for treatment of injured but no medical bills has been filed on record. Petitioner is not awarded any amount towards medical bills.

34. The Claimant has not filed any document in support of the fact that she had incurred expenses on keeping an attendant, for conveyance and for extra nutritious diet. However, I guess she must have spent some amount for which he is awarded a lumpsum amount of Rs. 20,000/□for Special Diet and for Conveyance Charges.

35. Keeping in view the nature of injuries suffered by the petitioner and the fact that she was under constant treatment, she needed an Attendant to look after her and the petitioner is therefore, entitled to attendant charges. Petitioner has not filed any record to show that she has received help of special attendant however, some family member must have been attending him. A victim of accident has to be compensated in terms of money even if gratuitous services are under by a family members. In Delhi Transport Corporation and Anr. v. Lalita AIR 1981 Delhi 558, a Division Bench of Hon'ble High Court held that there cannot be any deduction if domestic help is obtained from a family member. This judgment was again relied DAR Nos. 402/18, 403/18 & 404/18 23 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

upon by the Hon'ble High Court of Delhi in the case of Narayan Bahadur v. Sumeet Gupta and Anr., MAC APP. No. 762/11 dated 04.07.12. In the circumstances, where the injured had suffered injury, it is deemed fit that a lump sum of Rs. 15,000/□be awarded as compensation towards Attendant charges.

36. Keeping in view the facts and circumstances, I consider the following amount to be the just compensation to the Claimant :□

1. Future Loss of Income Rs. 0/□

2. Towards Pain Shock & Suffering Rs. 50,000/□

3. Towards Loss of Amenities & Enjoyment of Life Rs. 0/□4 Towards Servant / Attendant Charges Rs. 15,000/□

5. Towards Conveyance & Special diet Rs. 20,000/□6 Towards medical bills Rs. 0/□7 Towards loss of Eduction Rs. 12,000/□Total= Rs. 97,000/□Ld. counsel for insurance company vehemently argued that due to the contributory negligence of the injured, petitioner is not entitled for the compensation. The contributory negligence of injured is proved in view of testimony of PW□1 Kamal who categorically deposed during cross examination that the he is the one who was driving the motorcycle at the time of accident and other two injured persons namely Tannu and Rajni were pillion riders at the time of accident ; he did not have DL at the time of accident and they all three were not wearing the helmets. Keeping in view of circumstances of the case, the 50 % of the total compensation amount is deducted towards contributory negligence. The petitioner is accordingly entitled for compensation of Rs. 48,500/□from the respondents.

I accordingly award an amount of compensation of Rs. 48,500/□in favour of the Claimant and against respondents.

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Issue No. ii in petition No. 404/18 :□

(ii) Whether petitioner is entitled to compensation ? If so to what amount and from whom? OPP

37. Hon'ble Supreme Court in (2011) 1 SCC 343 titled Raj Kumar V/s Ajay Kumar & Anr. examined the general principles relating to compensation in injury cases. As held:□

4. The provision of the Motor Vehicles Act, 1988 (Act for short) makes it clear that the award must be just, which means that compensation should , to the extent possible, fully and adequately restore the claimant to the position prior to the accident. The object of awarding damages is to make good the loss suffered as a result of wrong done as far as money can do so, in a fair, reasonable and equitable manner. The court of tribunal shall have to assess the damages objectively and exclude

from consideration any speculation or fancy, though some conjecture with reference to the nature of disability and its consequences, is inevitable. A person is not only to be compensated for the physical injury, but also for the loss which he suffered as a result of such injury. This means that he is to be compensated for his inability to lead a full life, his inability to enjoy those normal amenities which he would have enjoyed but for the injuries, and his inability to earn as much as he used to earn or could have earned. (See C. K. Subramonia Iyer V. T. Kunhikuttan Nair MANU/SC/0011/1969 : AIR 1970 SC 375, R.D. Hattangadi V. Pest Control (India) Ltd.

MANU/SC/0146/1995 : 1995 (1) SCC 551 and Baker V. DAR Nos. 402/18, 403/18 & 404/18 25 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

Willoughby 1970 AC 467.

5. The heads under which compensation is awarded in personal injury cases are the following:□ Pecuniary damages (Special Damages)

(i) Expenses relating to treatment, hospitalization, medicines, transportation, nourishing food, and miscellaneous expenditure.

(ii) Loss of earning (and other gains) which the injured would have made had he not been injured, comprising:

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                (a)       Loss of earning during the period of
treatment;
                (b)      Loss of future earnings on account of
permanent disability.
      (iii)    Future medical expenses.
      Non-pecuniary damages (General Damages)
      (iv)     Damages for pain, suffering and trauma as a
consequence of the injuries.
      (v)      Loss of amenities ( and/ or loss of prospects of
marriage).
      (vi)     Loss of expectation of life ( shortening of
normal longevity).
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In routine personal injury cases, compensation will be awarded only under heads (I), (ii) (a) and (iv). It is only in serious cases of injury, where there is specific medical evidence corroborating the evidence of the claimant, that compensation will be granted under any of the heads (ii)

(b), (iii), (v) and (vi) relating to loss of future earning on DAR Nos. 402/18, 403/18 & 404/18 26 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

account of permanent disability, future medical expenses, loss of amenities (and / or loss of prospects of marriage) and loss of expectation of life. Assessment of pecuniary damages under item (I) and under item (ii) (a) do not pose much difficulty as they involve reimbursement of actual and are easily ascertainable from the evidence. Award under the head of future medical expenses□item

(iii)□□depends upon specific medical evidence regarding need for further treatment and cost thereof. Assessment of non pecuniary damages□items (iv), (v) and (vi) - involves determination of lump sum amounts with reference to circumstances such as age, nature of injury/deprivation/ disability suffered by the claimant and the effect thereof on the future life of the claimant.

Hon'ble Supreme Court further observed regarding assessment of future loss of earnings due to permanent disability that disability refers to any restriction for lack of liability to perform an activity in the manner considered normal for human being permanent disability refers to the residuary in capacity or loss of huge of some part of the body, found existing at the end of the period of treatment and recuperation, after receiving the maximum bodily improvement or recovery which is likely to remain for the remainder life of the injured. The percentage of permanent disability is expressed which reference to the whole body, or more often then an not, with reference to a particularly limb. Where the claimant suffers a permanent disability as a result of injuries, the assessment of compensation under the head of DAR Nos. 402/18, 403/18 & 404/18 27 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

loss of future earning would depend upon the effect and impact of such permanent disability on his earning capacity. What requires to be assessed by the tribunal is the effect of the permanent disability on his earnings capacity of the injured; and after assessing the loss of earnings capacity in terms of percentage of income, it has been pointify in terms of money, to arrive at the future loss of earning(by applying the standard multiplier method used to determine loss of dependency As further held, the trial has to first decide whether there is an permanent disability and if so the extent of such permanent disability. Ascertainment of the effect of the permanent disability on the actual earning capacity involves three steps. The Tribunal has to first ascertain what activities the claimant could carry on in spite of the permanent disability and what he could not do as a result of the permanent disability (this is also relevant for awarding compensation under the head of loss of amenities of life). The second step is to ascertain his avocation, profession and nature of work before the accident, as also his age. The third step is to find out whether (i) the claimant could still effectively carry on the activities and functions, which he was earlier carrying on, or (iii) whether he was prevented or restricted from discharging his previous activities and functions, but could carry on some other or lesser scale of activities and functions so that he continues to earn or can continue to earn his livelihood.

Hon'ble Supreme court laid down the principles in respect of the DAR Nos. 402/18, 403/18 & 404/18 28 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

assessment of compensation regarding injuries as below:□

(i) All injuries (or permanent disabilities arising from injuries), do not result in loss of earning capacity.

(ii) The percentage of permanent disability with reference to the whole body of a person, cannot be assumed to be the percentage of loss of earning capacity. To put it differently, the percentage of loss

of earning capacity is not the same as the percentage of permanent disability (except in a few cases, where the Tribunal on the basis of evidence, concludes that percentage of loss of earning capacity is the same as percentage of permanent disability).

(iii) The doctor who treated an injured□claimant or who examined him subsequently to assess the extent of his permanent disability can give evidence only in regard the extent of permanent disability. The loss of earning capacity is something that will have to be assessed by the Tribunal with reference to the evidence in entirety.

(iv) The same permanent disability may result in different percentage of loss of earning capacity in different persons, depending upon the nature of profession, occupation or job, age, education and other factors.

38. I have gone through the testimony of the witnesses alongwith complete medical records. Ld. Counsel for respondents argued that injured has not suffered any monetary loss on account of the injury and therefore, injured should not be granted any amount on account of loss of income.

39. Mother of injured has stated in her affidavit Ex. PW 1/A that injured was aged about 13 years at the time of accident and is studying in VIIth class in Govt Girls Senior Sec. School. Mother of injured further deposed DAR Nos. 402/18, 403/18 & 404/18 29 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

that she could not appeared in her exam due to the accident. Mother of injured further stated that due to the accident, injured fell down on the road and sustained grievous injuries ; Injured Tannu was remained admitted in the hospital till 06.09.2018 and kacha plaster was made on her right leg after got operated for the the period of more than one month. FIR No. 188/18 was registered at PS Sooia Vihar regarding the accident.

40. There is nothing on record in support of the affidavit of PW□1 that injured has suffered any loss of earnings as she was student. However, with the kind of injuries suffered by her, it can be safely assumed that she would have been under treatment leading to her loss of education. She is thus awarded Rs. 12,000/□towards loss of education.

41. While fixing compensation for pain and sufferings, as also for loss of amenities of life, the features like the age and unusual deprivation undertaken by a person in her life generally are to be reckoned. From the overall assessment, I assess Rs. 50,000/□as compensation towards Pain, Shock and Suffering to the Claimant.

42. Ld. Counsel for petitioner submits that parents of injured has spent amount for treatment of injured but no medical bills has been filed on record. Petitioner is not awarded any amount towards medical bills.

43. The Claimant has not filed any document in support of the fact that she had incurred expenses on keeping an attendant, for conveyance and for extra nutritious diet. However, I guess she must

have spent some amount for which she is awarded a lumpsum amount of Rs. 20,000/□for Special Diet and for Conveyance Charges.

44. Keeping in view the nature of injuries suffered by the petitioner and the fact that she was under constant treatment, she needed an Attendant to look after her and the petitioner is therefore, entitled to attendant charges. Petitioner has not filed any record to show that she has received help of DAR Nos. 402/18, 403/18 & 404/18 30 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

special attendant however, some family member must have been attending him. A victim of accident has to be compensated in terms of money even if gratuitous services are under by a family members. In Delhi Transport Corporation and Anr. v. Lalita AIR 1981 Delhi 558, a Division Bench of Hon'ble High Court held that there cannot be any deduction if domestic help is obtained from a family member. This judgment was again relied upon by the Hon'ble High Court of Delhi in the case of Narayan Bahadur v. Sumeet Gupta and Anr., MAC APP. No. 762/11 dated 04.07.12. In the circumstances, where the injured had suffered injury, it is deemed fit that a lump sum of Rs. 15,000/□be awarded as compensation towards Attendant charges.

45. Keeping in view the facts and circumstances, I consider the following amount to be the just compensation to the Claimant :□

1. Future Loss of Income Rs. 0/□

2. Towards Pain Shock & Suffering Rs. 50,000/□

3. Towards Loss of Amenities & Enjoyment of Life Rs. 0/□4 Towards Servant / Attendant Charges Rs. 15,000/□

5. Towards Conveyance & Special diet Rs. 20,000/□6 Towards medical bills Rs. 0/□7 Towards loss of Eduction Rs. 12,000/□Total= Rs. 97,000/□Ld. counsel for insurance company vehemently argued that due to the contributory negligence of the injured, petitioner is not entitled for the compensation. The contributory negligence of injured is proved in view of testimony of PW□1 Kamal who categorically deposed during cross examination that the he is the one who was driving the motorcycle at the time of accident and other two injured persons namely Tannu and Rajni were pillion riders at the time of accident ; he did not have DL at the time DAR Nos. 402/18, 403/18 & 404/18 31 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

of accident and they all three were not wearing the helmets. Keeping in view of circumstances of the case, the 50 % of the total compensation amount is deducted towards contributory negligence. The petitioner is accordingly entitled for compensation of Rs. 48,500/□from the respondents.

I accordingly award an amount of compensation of Rs. 48,500/□in favour of the Claimant and against respondents. Liability:□

46. Respondent No. 3 is the insurance company which admittedly has issued a valid insurance policy of the offending vehicle. Hence, I am of the opinion that respondent No. 3 being insurance company is liable to pay the compensation on behalf of respondent No. 1 and 2. Interim award if any paid to injured/ petitioner be adjusted in the award amount. Award in DAR No. 402/18:□

47. Resultantly, the DAR petition stands allowed. Insurance Company is hereby directed to pay the compensation of Rs. 55,844/□within one month to the Claimants. Claimant is also entitled to the interest @ 09 % p.a. on the total compensation amount from the date of filing of petition till realization. (The New India Assurance Co. Ltd. Vs. Gopali & Ors., 2012 ACJ 2131 SC, Jiju Kuruvila & Ors. Vs. Kunjujamma Mohan & Ors., 2013 ACJ 2141 SC, Puttamma Vs. K.L. Naraynan Reddy & Ors., 2014 ACJ 526 SC). Insurance Company is directed to deposit the amount with UCO Bank, KKD Courts Branch, Delhi.

48. Withdrawal from the said Account shall be permitted to Claimant after production of passbook of the bank account near the place of the residence with due endorsement that no debit card or cheque book has been issued or debit card / cheque book has been cancelled (if issued).

49. The award amount alongwith interest be deposited by Insurance Company, within 30 days. In case, the Insurance Company fails to deposit DAR Nos. 402/18, 403/18 & 404/18 32 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

this compensation with proportionate interest, in that event, in the light of the judgment of the Hon'ble High Court of Delhi in the case of New India Assurance Company Limited Vs. Kashmiri Lal, 2007 ACJ 688, this compensation shall be recovered by attaching the bank account of Insurance Company with a cost of Rs. 10,000/□

50. Form□V shall be read as a part of the judgment. Award in DAR No. 403/18:□

51. Resultantly, the DAR petition stands allowed. Insurance Company is hereby directed to pay the compensation of Rs. 48,500/□within one month to the Claimants. Claimant is also entitled to the interest @ 09 % p.a. on the total compensation amount from the date of filing of petition till realization. (The New India Assurance Co. Ltd. Vs. Gopali & Ors., 2012 ACJ 2131 SC, Jiju Kuruvila & Ors. Vs. Kunjujamma Mohan & Ors., 2013 ACJ 2141 SC, Puttamma Vs. K.L. Naraynan Reddy & Ors., 2014 ACJ 526 SC). Insurance Company is directed to deposit the amount with UCO Bank, KKD Courts Branch, Delhi.

52. Withdrawal from the said Account shall be permitted to Claimant after production of passbook of the bank account near the place of the residence with due endorsement that no debit card or cheque book has been issued or debit card / cheque book has been cancelled (if issued).

53. The award amount alongwith interest be deposited by Insurance Company, within 30 days. In case, the Insurance Company fails to deposit this compensation with proportionate interest, in that event, in the light of the judgment of the Hon'ble High Court of Delhi in the case of New India Assurance Company Limited Vs. Kashmiri Lal, 2007 ACJ 688, this compensation shall be recovered

by attaching the bank account of Insurance Company with a cost of Rs. 10,000/-.

54. Form-V shall be read as a part of the judgment.

DAR Nos. 402/18, 403/18 & 404/18 33 of 34 Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

Award in DAR No. 404/18:-

55. Resultantly, the DAR petition stands allowed. Insurance Company is hereby directed to pay the compensation of Rs. 48,500/-within one month to the Claimants. Claimant is also entitled to the interest @ 09 % p.a. on the total compensation amount from the date of filing of petition till realization. (The New India Assurance Co. Ltd. Vs. Gopali & Ors., 2012 ACJ 2131 SC, Jiju Kuruvila & Ors. Vs. Kunjujamma Mohan & Ors., 2013 ACJ 2141 SC, Puttamma Vs. K.L. Naraynan Reddy & Ors., 2014 ACJ 526 SC). Insurance Company is directed to deposit the amount with UCO Bank, KKD Courts Branch, Delhi.

56. Withdrawal from the said Account shall be permitted to Claimant after production of passbook of the bank account near the place of the residence with due endorsement that no debit card or cheque book has been issued or debit card / cheque book has been cancelled (if issued).

57. The award amount alongwith interest be deposited by Insurance Company, within 30 days. In case, the Insurance Company fails to deposit this compensation with proportionate interest, in that event, in the light of the judgment of the Hon'ble High Court of Delhi in the case of New India Assurance Company Limited Vs. Kashmiri Lal, 2007 ACJ 688, this compensation shall be recovered by attaching the bank account of Insurance Company with a cost of Rs. 10,000/-.

58. Form-V shall be read as a part of the judgment.

59. Copy of this judgment be placed in the DAR petitions bearing DAR Nos. 402/18, 403/18 & 404/18. Gorakh Digitally signed by Gorakh Nath Pandey Location: Court No.69, Announced in open Court on this day of 04th January, 2019 Nath North East District, Karkardooma Court, Delhi Pandey G. N. Pandey Date: 2019.01.09 17:21:28 +0530 Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

DAR Nos. 402/18, 403/18 & 404/18 34 of 34